



CHAPTER xxii.

An Act for conferring further powers upon the North British Railway Company for authorising the construction of a road diversion for empowering the Company and the Haddington County Council to acquire lands and for other purposes. A.D. 1916.
[19th July 1916.]

WHEREAS it is expedient that the North British Railway Company (in this Act called "the Company") should be authorised to acquire for the general purposes of their undertaking the several lands in this Act mentioned in that behalf and that the Company should be empowered to hold and use for the general purposes of their undertaking the several lands described in this Act which have already been acquired by them :

And whereas it is expedient that the county council of the county of Haddington and the western district committee of the said county council should be empowered to construct the road diversion in this Act described and that the county council of the said county should be empowered to acquire lands for such purpose :

And whereas by an agreement (hereinafter called "the agreement") dated the 23rd day of September and the 8th day of October 1886 made between the Company and the Broxburn Oil Company Limited (hereinafter called "the Broxburn Company") the Company agreed to convey the oil and other traffic therein mentioned of the Broxburn Company over the railways of the Company and to perform the services in respect of such traffic at the exceptionally low rates specified in the agreement and in consideration thereof the Broxburn Company agreed to forward and send by the railways of the Company all the railway traffic of the Broxburn Company from or to their works at

A.D. 1916. Broxburn to or from places for which the railways of the Company formed a route and it was provided that the agreement should subsist until the 31st day of July 1894:

And whereas by a supplemental memorandum of agreement (hereinafter called "the supplemental agreement") of the same dates and made between the same parties the Company agreed to construct a branch railway to the works of the Broxburn Company from their Edinburgh and Bathgate Railway and in consideration thereof it was provided that the agreement should notwithstanding the period of endurance specified therein continue binding so long as the works of the Broxburn Company are carried on:

And whereas the agreement was one of a series of similar agreements made in Scotland between the Company or the Caledonian Railway Company and the various Scottish oil companies all of which agreements except the agreement expired many years ago:

And whereas the said oil and other traffic of the Broxburn Company and other Scottish oil companies has been and is still being conveyed by the Company at the rates specified in the agreement which rates are much below the ordinary rates for similar traffic charged by the Company and other railway companies:

And whereas the rates charged by the Company in respect of oils and motor spirit and certain other traffic of traders and persons other than the Scottish oil companies have exceeded those mentioned in the agreement and the Railway and Canal Commission have decided that the said rates charged to the Broxburn Company and other Scottish oil companies are an undue preference as against certain other consignors of oils and motor spirit:

And whereas owing mainly to the development of motor traction the carriage of oils and motor spirit has since the date of the agreement greatly increased and the charging of the rates mentioned in the agreement for all oils and motor spirit conveyed on the railway of the Company would involve the Company in great loss:

And whereas the extended endurance of the agreement provided for by the supplemental agreement was intended to be a concession by the Broxburn Company to the Company in

consideration of the Company agreeing to construct the said branch railway for the benefit of the Broxburn Company: A.D. 1916.

And whereas the said branch railway has been duly constructed by the Company and has been authorised by Act of Parliament and now forms and will continue to form part of the system of the Company and the Broxburn Company has therefore secured in perpetuity the benefit in consideration of which it agreed to the extended endurance of the agreement but such extended endurance has seriously prejudiced the Company and other railway companies:

And whereas it is accordingly expedient that the agreement and the supplemental agreement should be cancelled and rendered void:

And whereas it is expedient that the Company should be empowered to apply their funds to the purposes of this Act and for the general purposes of their undertaking:

And whereas a plan and section showing the work by this Act authorised to be constructed and plans of the lands by this Act authorised to be acquired and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes of this Act were duly deposited with the principal sheriff clerks of the several counties within which that work will be constructed and those lands are situate which plans section and books of reference are in this Act respectively referred to as "the deposited plans section and books of reference":

And whereas the purposes aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may for all purposes be cited as the North British Railway Act 1916. Short title.

2. The Lands Clauses Acts are except where expressly varied by or inconsistent with this Act incorporated with and form part of this Act. Incorporation of Lands Clauses Acts.

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Interpreta-
tion.

3. In this Act the several words and expressions to which meanings are assigned by the Acts incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

“The county council” means the county council of the county of Haddington; and

“The district committee” means the western district committee of the county council.

Power to
district com-
mittee to
construct
road diver-
sion and to
county coun-
cil to acquire
lands.

4. Subject to the provisions of this Act the district committee may make and maintain in the lines shown on the deposited plans and according to the levels shown on the deposited section the road diversion hereinafter described with all proper roads approaches works and conveniences connected therewith and the county council may enter upon take and use such of the lands delineated upon the deposited plans and described in the deposited books of reference relating thereto as may be required for the purposes thereof or in connexion therewith.

The road diversion hereinbefore referred to and authorised by this Act is—

A road diversion in the parishes of Gladsmuir and Tranent in the county of Haddington of the road from Dunbar to Edinburgh passing Longniddry Station and Seton Mains on the north side of the said road commencing at a point ninety yards or thereabouts east of the point where the main line of the Company crosses the said road on the level known as the Cantyhall Level Crossing and terminating at a point sixty yards or thereabouts west of the point where the said railway crosses the said road on the level known as the Saint Germain's Level Crossing.

Power to
deviate in
construction
of road diver-
sion.

5. In constructing the road diversion by this Act authorised the district committee may deviate from the lines of the said work shown on the deposited plans thereof to the extent of the limits of deviation marked on the deposited plans and may deviate from the levels of the said work shown on the deposited section to any extent not exceeding two feet upwards and two feet downwards.

Company to
construct
level cross-
ing.

6. Contemporaneously with the construction of the road diversion by this Act authorised the Company shall construct

an accommodation level crossing over their main line of railway in the parish of Tranent immediately opposite the entrance lodge to the mansion house of St. Germain's connecting the road by this Act authorised to be diverted with the road diversion by this Act authorised.

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7. Any road or footpath or portion of road or footpath to be made diverted or altered under the authority of this Act shall when made and completed from time to time be repaired and maintained by and at the expense of the same parties in the same manner and to the same extent as other roads and footpaths of the same nature within the parishes in which such road or footpath or portion of road or footpath will be situate are from time to time liable to be repaired or maintained.

Provision as
to repair of
roads and
footpaths.

8. From and after the opening for public traffic of the road diversion by this Act authorised the Company may stop up and discontinue the use of and close for public traffic so much of the road from Dunbar to Edinburgh as crosses the Company's main line of railway on the level at the Cantyhall and Saint Germain's Level Crossings and so much of the occupation road leading from the said road to Seton Mains as crosses the said railway on the level at the Seton Mains Level Crossing and the approaches to such level crossings and thereupon all public rights of way in over or across the same respectively shall be extinguished.

Stopping up
of level cross-
ings.

9. Whereas Archibald Hay Tennent is heritable proprietor of the lands of St. Germain's and Chesterhall which lands are bounded on the north in part by that portion of the road from Dunbar to Edinburgh the diversion whereof is authorised by this Act Now therefore the following provisions shall apply for the protection of the said Archibald Hay Tennent (hereinafter in this section referred to as "the owner" which expression includes his successors in title owners for the time being of the said lands of St. Germain's and Chesterhall) unless otherwise agreed between the owner and the Company:—

For protec-
tion of Archi-
bald Hay
Tennent of
St. Germain's.

- (1) In lieu of the proposed level crossing shown on the deposited plans as connecting the approach road leading to the premises known as Chesterhall with the road diversion authorised by this Act and in lieu also of any interest of the owner in the existing

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adjoining accommodation level crossing the Company shall contemporaneously with the construction of the said road diversion construct and at all times thereafter maintain a level crossing for the accommodation of the said lands of St. Germain's and Chesterhall over their main line of railway in the parish of Tranent immediately opposite the entrance lodge to the mansion house of St. Germain's and connecting the road leading to that mansion house with the said road diversion :

- (2) The Company shall erect and maintain gates on either side of the said level crossing and shall employ a proper person to open and close such gates who shall be constantly in attendance for that purpose :
- (3) Any house provided for the occupation of the person employed to open and close the gates of the said level crossing shall be erected on the south side of the railway and on the east side of the said level crossing in such position as the owner shall reasonably require :
- (4) Within one month after the stopping up of the level crossings referred to in the section of this Act of which the marginal note is "Stopping up of level crossings" or any of them the Company shall pay to the owner the sum of five hundred pounds which sum shall be accepted by the owner as full compensation for all damage to or injurious affection of the said lands of the owner by reason or in consequence of the stopping up of the said level crossings or the construction of the road diversion by this Act authorised. The said sum of five hundred pounds shall include the compensation (if any) to which the existing tenant of the farm of Chesterhall may be entitled in respect of the matters aforesaid :
- (5) If any difference shall arise between the owner and the Company under this section such difference shall be determined by an arbitrator to be agreed upon or failing agreement to be appointed by the sheriff of the county of Haddington.

For protection of Earl of Wemyss and March or other the owner for the time being

10. For the protection of the Right Honourable the Earl

of the lands now belonging to the said earl in the parish of Tranent (hereinafter in this section referred to as "the owner") the following provisions shall unless otherwise agreed between the owner and the Company apply and have effect (that is to say) :—

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of Wemyss
and March.

In lieu of the proposed level crossing shown on the deposited plans as connecting the approach road leading to the premises known as Chesterhall with the road diversion authorised by this Act and in lieu also of any interest of the owner in the existing adjoining accommodation level crossing the Company shall contemporaneously with the construction of the said road diversion construct and at all times thereafter maintain the level crossing referred to in the section of this Act of which the marginal note is "Company to construct level crossing."

11. The county council may borrow such sums as may be required for the purposes of the road diversion and the acquisition of lands therefor by this Act authorised and for the purpose of paying one half of the compensation referred to in the section of this Act of which the marginal note is "For protection of Archibald Hay Tennent of St. Germain's" and the provisions of the Roads and Bridges (Scotland) Act 1878 as read with the Local Government (Scotland) Act 1889 relating to assessment and borrowing for the construction of new roads and bridges shall apply to and in respect of such road diversion and the acquisition of lands therefor and such portion of compensation as aforesaid.

Provisions as
to borrowing
by county
council.

12. Notwithstanding anything in this Act the county council shall not under the powers of this Act borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Restriction
on exercise
of borrowing
powers.

13. Subject to the provisions of this Act the Company may enter upon take use and appropriate for the purposes of their undertaking and for providing accommodation for persons of the working class who may be displaced in executing the powers of this Act or any other Act or any Order relating to the Company the lands hereinafter described or referred to delineated on the deposited plans and described in the deposited books of reference relating thereto (that is to say) :—

Power to
acquire addi-
tional lands
&c.

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- (A) Certain lands in the parish of Ballingry in the county of Fife on both sides of and adjoining the Company's loop line from Cowdenbeath to Lumphinnans Junction and extending westwards and eastwards of the occupation bridge under the railway on the farm of South Lumphinnans :
- (B) Certain lands in the parish of Beath in the county of Fife on the north side of the approach road leading from the public road to Kelty Station on the Company's main line from Dunfermline to Perth :
- (C) Certain lands in the parish of Markinch in the county of Fife on the west side of and adjoining the Company's main line from Thornton to Dundee north of Thornton Junction :
- (D) Certain lands in the parish of Cumbernauld in the county of Dumbarton along the south side of the Company's main line from Edinburgh to Glasgow and south-west of the bridge carrying the public road from Kilsyth over the said line at Croy Station :
- (E) Certain lands in the parish of Kirkintilloch in the county of Dumbarton along the north side of the Company's main line from Edinburgh to Glasgow adjoining their Gartshore sidings :
- (F) Certain lands in the parish of Heriot in the county of Edinburgh along the west side of the Company's main line from Edinburgh to Hawick adjoining their Falahill sidings :
- (G) Certain lands in the parish of Heriot in the county of Edinburgh on the west side of and adjoining the Company's main line from Edinburgh to Hawick at Falahill Cottages.

Company
may hold
certain lands
already
acquired.

14. The Company may hold and may use and appropriate for the general purposes of their undertaking the following lands which have been already acquired by them (that is to say):—

In the county of Dumbarton—

- (A) Certain lands in the parish of New Kilpatrick on the north-east and south-west sides of and adjoining

the Glasgow Dumbarton and Helensburgh Railway of the Company at and near Milngavie Junction : A.D. 1916.

In the county of Edinburgh—

- (B) Certain lands in the parish of Inveresk on the east side of and adjoining the Monktonhall Ormiston and Dalkeith Railway of the Company and extending a distance of thirty-five yards or thereby north-eastwards and two hundred and thirty-five yards or thereby southwards from the centre of the stream known as the Dean Burn :
- (C) Certain lands in the parish of Inveresk on the west side of and adjoining the Monktonhall Ormiston and Dalkeith Railway of the Company near Smeaton Station :
- (D) Certain lands in the parish of Inveresk on the north side of and adjoining the Monktonhall Ormiston and Dalkeith Railway of the Company at Crossgatehall Halt :
- (E) Certain lands in the parish of Inveresk on the south side of and adjoining the Company's main line from Edinburgh to Berwick-upon-Tweed to the east of the bridge carrying the said main line over the service road to Barbachlaw Farm :
- (F) Certain lands in the parish of Prestonpans on the north side of and adjoining the Company's line from Edinburgh to Berwick-upon-Tweed to the west of Prestonpans Station :

In the county of Fife—

- (G) Certain lands in the parish of Dunfermline on both sides of the Company's railway from Dunfermline to Perth at and adjoining Halbeath Station :
- (H) Certain lands in the parish of Dunfermline on the south-west side of the Company's railway from Inverkeithing to Dunfermline to the west of Saint Margaret's Stone Farm Steading :
- (I) Certain lands in the parish of Dunfermline on both sides of the Company's railway from Dunfermline to Perth at Townhill Junction :

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In the county of Haddington—

- (J) Certain lands in the parish of Dunbar on the north side of and adjoining the Company's main line from Edinburgh to Berwick-upon-Tweed at and near Dunbar Station :
- (K) Certain lands in the parish of Dunbar on the north side of and adjoining the Company's station at Dunbar on their main line from Edinburgh to Berwick-upon-Tweed :
- (L) Certain lands in the parish of Gladsmuir on the south side of and adjoining the Company's main line from Edinburgh to Berwick-upon-Tweed to the west of Longniddry Station :

In the county of Lanark—

- (M) Certain lands in the barony parish of Glasgow on the north side of and adjoining the Glasgow and Coatbridge Railway of the Company to the north-west of Parkhead Station :
- (N) Certain lands in the parish of Shotts on the south-south-east side of Forrestfield Station on the Company's railway from Airdrie to Bathgate :

In the county of Linlithgow—

- (O) Certain lands in the parish of Bathgate on the north and south sides of and adjoining the Edinburgh and Bathgate Railway to the east of Bathgate Station :
- (P) Certain lands in the parish of Bathgate on the south side of and adjoining Armadale Station on the Edinburgh and Bathgate Railway :

In the county of Stirling—

- (Q) Certain lands in the parish of Muiravonside on the south side of and adjoining the Company's station at Manuel of their main line from Edinburgh to Glasgow :

And the expenditure of money by the Company in or about the purchase of the said lands is hereby sanctioned and confirmed but nothing in this Act shall exempt the Company from any action or other proceeding for nuisance in the event of any

nuisance having been or being caused or permitted by them upon any lands acquired by them as aforesaid to which this section relates. A.D. 1916.

15. The powers of the Company or the county council (as the case may be) for the compulsory purchase of lands under the powers of this Act shall cease after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

16. Persons empowered by the Lands Clauses Acts to sell and convey and release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company or the county council (as the case may be) any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and feu duties or ground annuals so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively. Owners may grant servitudes &c.

17. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished Provided that the Company or the county council respectively as the case may be shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement. As to private rights of way over lands taken compulsorily.

18. In all cases of disputed compensation arising under this Act in respect of land to be taken compulsorily or otherwise by the county council which fall to be determined under the provisions of the Lands Clauses Acts it shall unless the county council and the other party or parties to the dispute concur in the appointment of a single arbiter in terms of such Acts be in the power of the county council or such other party or parties to apply to the Secretary for Scotland to appoint a single arbiter to determine the compensation to be paid and it shall not be competent thereafter to have the same determined by arbiters oversman sheriff or jury acting under the said Acts The said arbiter upon appointment shall be deemed to be a sole arbiter within the meaning of the Lands Clauses Acts and the Single arbiter.

A.D. 1916. provisions of those Acts with regard to arbitration shall apply accordingly and the arbiter shall notwithstanding anything contained in the said Acts determine the amount of expenses in the arbitration and such determination shall be final. The remuneration of the said arbiter shall failing agreement be fixed by the Secretary for Scotland.

Power to Lamond's trustees to convey lands to Company. **19.** The testamentary trustees of James Lamond may grant and convey to the Company certain lands ^{·187} of an acre or thereabouts in extent situate in the city parish of Edinburgh and forming part of the site of the Company's Edinburgh and Glasgow Railway west of the Mound Tunnels.

Extending time for sale &c. of superfluous lands. **20.** Section 22 (Extending time for sale of superfluous lands) of the North British Railway (General Powers) Order 1904 shall be read and have effect as if the period of five years had been mentioned therein in lieu of the period of two years and from the twenty-second day of July one thousand nine hundred and sixteen until the passing of this Act the operation of section 120 of the Lands Clauses Consolidation (Scotland) Act 1845 with regard to any lands referred to in section 22 of the said Order shall be and shall be deemed to have been suspended.

Railway siding accommodation at Granton Harbour. **21.—(1)** Section 32 of the North British Railway Act 1913 is hereby repealed.

(2) The Company shall not under the powers of the North British Railway Act 1913 take by compulsion any lands at Granton Harbour belonging to His Grace the Duke of Buccleuch or other the owner thereof for the time being (in this section referred to as "the owner").

(3) The Company may for the purpose of providing additional railway facilities at Granton Harbour enter upon and reclaim and fill up to a level 1·5 feet below the level of the rails of the existing harbour running lines the area of land forming part of Granton West Harbour and of lands delineated on the deposited plans and described in the deposited books of reference applicable to the North British Railway Act 1913 situated in the city parish of Edinburgh and county of the city of Edinburgh and extending to 8·02 acres or thereby bounded on the north-east and north and partly on the west and north by the pitched slope in this section aftermentioned on the west partly by the West Pier at Granton Harbour and on the south by the public road and on the east by land belonging to the owner and which area is shown edged green

on the plan dated the fifteenth day of May one thousand nine hundred and sixteen signed in duplicate by William Alexander Fraser on behalf of the Company (hereinafter referred to as "the plan") and is in this section hereinafter referred to as "the said area of land."

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(4) The owner shall so far as not already done construct the pitched slope shown upon the plan in accordance with sections and specifications to be approved by the Company and in case of difference to be settled by an engineer to be agreed upon or appointed by the Dean of the Faculty of Advocates Edinburgh.

(5) The Company shall simultaneously with the construction of the said pitched slope reclaim and fill up to the level as aforesaid so much of the said area of land behind the said pitched slope as may be necessary for the proper protection of the said pitched slope.

(6) The Company shall immediately upon the completion of the said pitched slope reclaim and fill up to the level as aforesaid so far as not already done that part of the said area of land extending to 2·75 acres or thereby which is coloured red on the plan and shall lay down upon the said reclaimed land so coloured the railway sidings shown upon the plan.

(7) The Company shall simultaneously with the reclamation of the said land coloured red reclaim and fill up to the level as aforesaid so far as not already done that part of the said area of land extending to ·83 of an acre or thereby which is coloured yellow on the plan and shall lay thereon a double line of rails in lieu of and in substitution for the existing harbour running line which immediately adjoins the said area coloured yellow. In filling up the said land coloured yellow the Company shall be entitled to use the harbour running lines and to unload therefrom. The permanent way materials of the existing harbour running lines may be used in the construction of the new double line of rails. The said double line of rails shall be vested in the owner and maintained by him. The two new sidings coloured brown to be laid down on the area coloured blue on the plan shall belong to and be maintained by the Company.

(8) With regard to the remaining portion of the said area of land extending as shown upon the plan to 4·44 acres or thereby which is coloured blue on the plan the Company shall proceed with the reclamation and filling up of the same so far

A.D. 1916. — as not already done to the level as aforesaid at such times and to such extent as may be agreed between the owner and the Company and shall from time to time lay down thereon the railway sidings shown upon the plan Provided that the Company shall be bound to proceed with the complete reclamation of the said 4·44 acres or thereby and the laying down thereon of the railway sidings so as from time to time to meet the reasonable traffic requirements of the said harbour With regard to the portion of the said area coloured blue on the plan upon which no railway sidings are shown the owner shall be entitled to use the same for harbour purposes so long as it is not required for sidings but if and when the traffic at the harbour requires additional sidings the Company shall be entitled to get possession from time to time of such parts of said portion of the said area coloured blue as may be required to lay additional sidings thereon on giving to the owner twelve months' notice of the Company's desire to use the said portion for such sidings Any difference or dispute between the Company and the owner under this subsection shall be referred to the Dean of the Faculty of Advocates as sole arbiter and his decision shall be final.

(9) The Company shall maintain the said sidings on the areas coloured red and blue on the plan in good order and shall also perform at their own cost the ordinary maintenance of the said pitched slope The owner shall perform at his own cost any extraordinary maintenance of the said pitched slope including the making good of any defects in the original construction or workmanship thereof and all repairs required in consequence of damage by storms The maintenance of the said pitched slope shall not be considered extraordinary maintenance within the meaning of this section when the cost thereof necessitated at any one time does not exceed one hundred pounds sterling The Company shall in respect of the occupation by the said sidings of the said areas of ground or any part thereof pay to the owner at Whitsunday yearly a rent of one pound sterling the first payment of said rent being due and payable at the first term of Whitsunday following the completion of the said sidings on the reclaimed land coloured red.

(10) The owner shall be entitled at any time on one year's previous notice to call upon the Company to remove the said sidings or any part or parts thereof and should the owner avail himself of this power he shall be bound in his option either (1) to pay to the Company such sum as the engineer of the

Company shall certify as the actual cost of the reclamation and filling up by the Company in the event of the owner calling upon the Company to remove the whole of the said sidings and proportionately for any smaller part or parts but should the owner exercise the said right reserved to him as aforesaid within the period of thirty years from Whitsunday one thousand nine hundred and sixteen he shall in addition to the said actual cost of the reclamation and filling up or proportional part thereof pay to the Company the original cost of the labour expended on laying down and ballasting the sidings to be removed and the cost of removal of such sidings or (2) to reinstate at his own cost the sidings so to be removed to some other suitable position in or adjacent to Granton Harbour to the reasonable satisfaction of the Company the part or parts of said sidings which the owner shall be entitled to remove shall be such part or parts as may be mutually arranged between the owner and the Company or failing arrangement shall be such part or parts only as may be removed without material detriment to the use of the remainder. Any dispute or difference under this subsection shall be referred to the Dean of the Faculty of Advocates as sole arbiter and his decision shall be final.

(11) The said sidings shall be used primarily for traffic to or from the said harbour. The Company shall be entitled to use the said sidings for other traffic but only in so far as such use will not in any way or to any extent prejudice the working of the traffic to or from the said harbour.

(12) Subject to the provisions of this section and in the event of vessels at any future time being loaded or unloaded at the said pitched slope or any part of it or from any pier jetty or other work that may be constructed at or adjacent thereto or in connexion therewith the Caledonian Railway Company shall be entitled without payment to access to and from such vessels from the sidings hereinbefore referred to and to the use of the said sidings for the purpose of conveying traffic of all kinds to and from such vessels but the said sidings shall not be used by the Caledonian Railway Company for storage accommodation for waggons except to such an extent as is reasonably necessary in connexion with the export or import of traffic from or to such vessels the intention being that subject to the provision of this subsection traffic to and from the Caledonian Railway from and to Granton Harbour or any part thereof shall be treated as favourably in all respects as traffic to and from the North British Railway from and to said harbour or any part thereof.

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(13) For so long as the option by this section conferred on the owner remains unexercised the Caledonian Railway Company shall be entitled to use (1) the three southmost lines of sidings shown marked A.A.A. upon the plan (2) the connexions with the harbour running lines at each end and with the lines on the western breakwater all as shown on the plan (3) the line marked on the plan "Shunting siding for engine and 21 waggons" and (4) the sidings in so far as situated upon the area coloured blue upon the plan if and when sidings are constructed upon the area coloured blue or any part thereof for mineral traffic which may be carried by the Caledonian Railway Company shipped or unshipped at the pier harbour and breakwater Provided that the two southmost of the sidings marked A.A.A. may also be used by the Caledonian Railway Company for general traffic shipped or unshipped at the harbour and that none of the said sidings on the areas coloured red and blue on the plan shall be used by the Caledonian Railway Company for the storage of traffic except to such extent as is necessary in connexion with the shipping and unshipping of traffic Provided also that in the event of the use by the Caledonian Railway Company of the said two southmost sidings for general traffic the Company shall be entitled to construct a connecting line as shown dotted yellow on the plan and on that connecting line being opened for traffic the Caledonian Railway Company shall use such connecting line for all traffic both mineral and general using the said two southmost sidings unless where the length of a train in order to avoid fouling the harbour running lines of the owner necessitates the use of the siding marked on the plan "Shunting siding for engine and 21 waggons" The Caledonian Railway Company shall further be entitled for the purpose of so using the said sidings to run over and use so much of the railways of the Company as may be necessary to enable the Caledonian Railway Company to run full trains into said sidings shown upon the plan marked A.A.A. and the said sidings upon the area coloured blue and in respect of the exercise of the powers conferred by this subsection or any of these powers the Caledonian Railway Company shall pay annually to the Company such sum as failing agreement may from time to time be determined by an arbiter to be appointed by the Board of Trade.

(14) The Company shall be entitled to and shall within five years from the passing of this Act construct and complete at their own expense the new and altered lines footbridge level

crossing offices and other works shown upon the plan to the east of the said area of land edged green on the plan. A.D. 1916.

(15) The two sidings coloured brown on the area of land coloured blue on the plan shall be laid down by the Company as soon as the land has been made up and the Company shall have the use of the said two sidings and of the sidings marked on the plan "Shunting siding for engine and 21 waggons" and "Traffic sidings (12 waggons)" as well as of the adjoining carting space.

(16) Except as in this section provided all existing rights of property and otherwise of the owner are reserved entire and there is also reserved to the owner all dues tolls rights and privileges constituted by the various agreements entered into from time to time between the successive owners of the harbour of Granton and the Company and the Caledonian Railway Company and the Edinburgh Perth and Dundee Railway Company and in particular the tolls dues and others created and now due and payable to the owner under and by virtue of the minute of agreement entered into between His Grace Walter Francis Duke of Buccleuch and Queensberry of the first part the Caledonian Railway Company of the second part and the Edinburgh Perth and Dundee Railway Company of the third part dated the twenty-ninth and thirtieth days of April and the sixth day of May 1862.

22. Subject to the provisions of this Act any of the works authorised by this Act to be constructed on over or under tidal lands below high-water mark of ordinary spring tides shall be constructed only in accordance with such plans and sections and subject to such restrictions and regulations as previous to such works being commenced have been approved by the Board of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade.

Works below high-water mark to be subject to approval of Board of Trade.

Any alteration or extension of any such works shall be subject to the like approval.

If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Company and the amount of such cost shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

A.D. 1916.
Cancellation
of agreement
and supple-
mental
agreement
between
Company
and Brox-
burn Oil
Company
Limited.

23. The agreement dated the twenty-third day of September and the eighth day of October one thousand eight hundred and eighty-six made between the Company and the Broxburn Oil Company Limited and the supplemental memorandum of agreement of the same dates and made between the same parties are hereby cancelled annulled and rendered void Within one month after the passing of this Act the Company shall pay to the Broxburn Oil Company Limited in respect of the cancellation of the said agreements the sum of fifty thousand pounds.

As to pay-
ment of
stamp duty.

24. Within three months of the passing of this Act the Company shall produce to the Commissioners of Inland Revenue a King's Printer's copy of this Act duty impressed with the ad valorem stamp duty payable upon an instrument constituting an obligation to pay (1) the sum of five hundred pounds referred to in subsection (4) of the section of this Act whereof the marginal note is "For protection of Archibald Hay Tennent of St. Germain's" and (2) the sum of fifty thousand pounds referred to in the section of this Act whereof the marginal note is "Cancellation of agreement and supplemental agreement between Company and Broxburn Oil Company Limited" and in default of such production the duty with interest thereon at the rate of five per centum per annum from the date of the passing of this Act shall be a debt due to His Majesty from the Company and recoverable as such.

Company
may apply
corporate
funds.

25. The Company may from time to time apply for or towards all or any of the purposes of this Act to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by any of their Acts or Orders and which are not required for the purposes to which they are by those Acts or Orders made specially applicable:

Provided that the Company shall not so apply any such sums during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Provision as
to general
Railway
Acts.

26. Nothing in this Act contained shall exempt the Company from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the date of the passing of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges.

or of the rates for small parcels authorised to be taken by the Company. A.D. 1916.

27. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land heritages subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give). Crown rights.

28. The Company shall make compensation for the damage or injury (if any) which may be sustained by His Majesty or his tenants in respect of his right of salmon fishing through the exercise of the powers of this Act and in case the amount of such compensation shall not be agreed upon the same shall be ascertained and fixed by the decision and decree arbitral of two arbiters to be appointed the one by the Commissioners of Woods and the other by the Company or of an oversman to be named by the said arbiters to act in the event of their differing in opinion and the Arbitration (Scotland) Act 1894 shall apply to any arbitration under this section. Compensation for damage to salmon fishings.

29. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

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